

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday September 23, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
2:00 PM LINE 1	
22-CIV-02749	TERRY CARL RIECKEN VS. MATHEW JOEL BRADSHAW, ET AL
TERRY CARL RIECKEN MATHEW JOEL BRADSHAW	GINGER L SOTELO RICHARD J. ZUROMSKI

Plaintiff's Petition to Confirm Arbitration Award

TENTATIVE RULING:

Initially, the court notes that petitioner has not provided the correct address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, California 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The unopposed Petition to Confirm Contractual Arbitration Award brought by petitioner Terry Carl Riecken, dba Construction Management and Development is **GRANTED**, as to the amended award, minus the partial credit. The court will award judgment to petitioner against Mathew Joel Bradshaw, dba Bradshaw Construction in the amount of \$454,520.78.

A. Background

Petitioner states that it performed construction work as a subcontractor with respondent Terreno 9070 Junction, LLC, Mathew Joel Bradshaw, dba Bradshaw Construction to perform work at the property of defendant Raison D’Etre Bakery, LLC, for which it was not paid.

On May 19, 2026, petitioner filed a Petition to Confirm Contractual Arbitration Award asking the court to confirm an Amended Arbitration Award (see Proposed Order, filed on May 19, 2026, exh. A) against Bradshaw in the amount of \$828,351.72 inclusive of attorney’s fees and costs, plus pre-judgment interest at the rate of ten percent per year from April 24, 2026, through the date of entry of judgment, and to enter judgment in its favor and against respondent. The form petition incorporates the parties’ arbitration agreement (Petition, ¶ 4, Attachment 4(b), at p. 8 [Section 13, Dispute Resolution]); states that the arbitration was conducted on December 8-10 and 15, 2025, in Oakland, California (*id.*, ¶ 7); and attaches the Amended Arbitration Award of May 5, 2026, and the original award of April 24, 2026. (*Id.*, ¶ 8, & Attachment 8(c).)

B. Governing Law

An arbitration award is not a judgment, and it has no legal effect until a court confirms the award. “An award that has not been confirmed or vacated has the same force and effect as a contract in writing between the parties to the arbitration.” (Code Civ. Proc., § 1287.6.) “If an

award is confirmed, judgment shall be entered in conformity therewith,” and the judgment has the same force and effect as a judgment in the instant action. (*Id.*, § 1287.4.)

After an award has been made, any party to the arbitration “may petition the court to confirm, correct or vacate” it. (Code Civ. Proc., § 1285.) “A petition to confirm an award shall be served and filed not later than four years after the date of service of a signed copy of the award on the petitioner.” (*Id.*, § 1288.)

“The allegations of a petition are deemed to be admitted by a respondent duly served therewith unless a response is duly served and filed.” (Code Civ. Proc., § 1290.) The response must be served and filed within ten (10) days after service of the petition or within 30 days if the respondent was served outside California. (*Id.*, § 1290.6.)

C. The Motion to Confirm the Award is Granted

Petitioner and respondent entered a written agreement which included an arbitration provision. (Petition, ¶ 4, Attachment 4(b) at p. 8 [Section 13, Dispute Resolution].) Arbitrator Harold P. (Peter) Smith entered an Arbitration Award on April 24, 2026, and an Amended Arbitration Award on May 5, 2026, awarding petitioner a total amount of \$828,351.72. (*Id.*, ¶ 8; Attachment 8(c), at pp. 35 & 24, respectively.)

By the deadline for the reply, petitioner modified its requested monetary judgment to account for credits it received against the Amended Arbitration Award in the amount of \$394,283.70 for a new total of \$434,068.02 inclusive of attorney’s fees and costs, and specifying the amount of interest requested as \$20,452.76. (Supp. Sotelo Decl., ¶¶ 4, 6-7, & exh. A [petitioner’s interest calculation]; Proposed Judgment, filed on September 16, 2026.) The updated total requested then would be \$454,520.78.

Petitioner’s counsel declares that:

Following the filing of the Petition, funds were received in partial payment of the Arbitration Award. Specifically, on May 16, 2026, Plaintiff received funds totaling \$394,283.70, by the stipulated release of funds held in a trust account pursuant to a pre-arbitration settlement agreement between Plaintiff and Defendant.

(Supp. Sotelo Decl., ¶ 4.)

Notwithstanding petitioner’s receipt of partial payment, this petition was filed on May 19, 2026. The proof of service captioned in the arbitration proceeding was filed on May 13, 2026, and modified by the Clerk to reflect this court’s case number.

Respondent has not filed any opposition, although he is clearly aware of this hearing. On July 29, 2026, respondent filed a “Status Report Regarding Defendant’s Opposition to Plaintiff’s Motion to Confirm Arbitration Award” (Status Report) informing the court that settlement discussions were in progress, and stating that, “Should the parties be unable to resolve their dispute, Defendant reserves all rights to oppose Plaintiff’s motion on statutory time based on the

Court's September 23, 2026, hearing date." (Status Report, at p. 2:5-7.) The Status Report thus indicates that respondent has waived any defects in notice of the hearing of the petition. If Bradshaw intends his Status Report and failure to oppose the petition to be interpreted otherwise, respondent should properly contest this tentative ruling and appear at the hearing either by Zoom or in person.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, petitioner's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 2

22-CIV-03785

ROBERT MORRIS VS. ISMAEL BASCO, ET AL

ROBERT MORRIS
ISMAEL BASCO

KENNETH C BROOKS
NICHOLE C BAER

Plaintiff's Motion for a Partial New Trial Pursuant to Code of Civil Procedure § 657

TENTATIVE RULING:

Plaintiff Robert Morris's "Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and Against Ismael Basco Pursuant to Civil Code § 629" (Partial JNOV Motion — Ismael Basco); "Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and Against Bernice Basco Pursuant to Civil Code § 629" (Partial JNOV Motion — Bernice Basco); and Motion for a Partial New Trial Pursuant to Code of Civil Procedure § 657" (New Trial Motion), are **DENIED**.

A. Background

On February 17, 2022, plaintiff Robert Morris and defendants Ismael Basco and Bernice Basco — who live next door to one another and had a history of low-level conflict regarding, among other things, street parking — got into an altercation. At approximately 7 p.m., Morris was sitting on a retaining wall on the corner of Paramount and Barcelona Avenues in the City of Milbrae. Morris was speaking to members of his two-way ham radio club. The Bascos were walking their golden retriever, Dexter, down Barcelona Avenue to the dog park.

Ismael Basco had Dexter on a four-foot leash. As they passed by Morris, Dexter began to sniff Morris's crotch. Morris, who had been bitten by a dog the year prior, and was afraid of dogs, testified in his deposition that he felt like he was being sexually assaulted by Dexter. Morris used his hand to push Dexter's head away from himself.

Both Morris and Bernice Basco were carrying containers of pepper spray. Morris to protect himself from dogs; and Bernice Basco to protect Dexter from coyotes at the dog park.

When Morris pushed Dexter away from himself, Bernice Basco reacted by pepper spraying him in the face. Morris sprang up and pepper sprayed Ismael Basco and then Morris touched or grabbed Bernice Basco and pepper sprayed her face. Ismael Basco reacted by pushing or shoving Morris away from Bernice Basco.

The following day, Morris walked approximately two miles to an emergency room where he was diagnosed with conjunctivitis, possibly due to chemical exposure. He also had some facial lacerations and a black eye. He was treated and told to return if he had further symptoms.

He did not return to the ER. His expert witness—who did not personally examine Morris but reviewed photographs — testified that the conjunctivitis was consistent with chemical exposure.

Morris filed a complaint asserting causes of action against each of the Bascos for battery (first cause of action “counts one and two”); intentional infliction of emotional distress (second cause of action); aiding and abetting against Bernice Basco (third cause of action); wrongful use of civil proceedings (fourth cause of action [withdrawn, relating to an unsuccessful civil harassment complaint filed by Bernice Basco]); and negligence (fifth cause of action). (Complaint, filed Sept. 15, 2022.) Defendants answered, generally denying the allegations and asserted certain affirmative defenses, including that plaintiff “provoked the altercation which he claims resulted in his injuries, if any there were;” self-defense; and defense of others. (Answer, filed Jan. 9, 2023, twentieth through twenty-second affirmative defenses.)

The case was tried to a jury beginning on July 6, 2026. The court discussed the substantive instructions, and the proposed special verdict form with counsel at length before the closing instructions were read and then given to the jury.

Before the jury retired to deliberate, the court instructed the jury on the law, including as to comparative fault (CACI 405); Battery (CACI 1300); self-defense or defense of others (CACI 1304); and aiding and abetting a tort (CACI 3610). (See Jury Instructions, filed July 17, 2026, at pp. 41, 43, 45-46.)

The jury was presented with a special verdict form to which the parties had agreed. (See Verdict, filed July 17, 2026.) The jury was asked in question 1, 1A and 1B: “On Robert Morris’s claim for Battery against defendant Ismael Basco and defendant Bernice Basco: 1A. Do you find that Ismael Basco touched or caused to be touched, Robert Morris, with the intent to harm or offend?; and 1B. Do you find that Bernice Basco touched or caused to be touched, Robert Morris, with the intent to harm or offend?” The jury answered “no” to Questions 1A and 1B.

As to question 9, 9A and 9B, the jury was asked: “9. On Robert Morris’ claim for Negligence against Ismael Basco and Bernice Basco: 9A. Was Ismael Basco negligent?; and 9B. Was Bernice Basco negligent?” The jury answered “yes” to Questions 9A and 9B. The jury further found that Ismael Basco’s and Bernice Basco’s “negligence [was] a substantial factor in causing harm to Robert Morris” and that Morris’s total damages for the Bascos’ negligence was \$3,000, reduced by Morris’s own negligence, which was a substantial factor in causing his harm. (Questions 11-12.) Finally, the jury found Ismael Basco 30% liable; Bernice Basco 60% liable; and Robert Morris 10% liable for Morris’s harm.

The jury awarded Morris \$0 damages as to the battery claim and \$3,000 in damages as to negligence. (Question 14.)

B. Morris’s Motions for Partial JNOV and a Partial New Trial

On July 31, 2026, Morris moved for partial JNOV as to the jury’s verdict on the battery cause of action pursuant to Code of Civil Procedure, section 629 (incorrectly referred to in the caption as Civil Code, § 629). Morris seeks a judgment in his favor and against each of the

defendants on the grounds that Ismael Basco intentionally hit or pushed him, and that Bernice Basco pepper-sprayed plaintiff without his consent. (See Partial JNOV Motions, at p. 2.)

Morris moved for a new trial based on the partial JNOV motions. That is he contends that the court should grant a new trial on the battery causes of action, and related damages claims, as well as the affirmative defense of self defense. (New Trial Mot., at pp. 2-3.)

Defendants oppose the motions. As to the partial JNOV motions, defendants argue that defendants testified that their actions were protective of one another and Dexter, and not intended to harm or offend plaintiff.

With respect to plaintiff's motion for a new trial, defendants argue that the "jury found that neither Ismael Basco nor Bernice Basco touched Plaintiff 'with the intent to harm or offend;'" that they testified that their "conduct was protective, not intentional;" and that the jury's verdict finding was supported by the evidence. (New Trial Opp. at p. 1.) Defendants further argue that plaintiff has not identified "any misconduct, error in law, newly discovered evidence, or any other statutory ground bearing on the verdict," and has not attempted "to weigh the evidence, as required by section 657 for disturbing the verdict on the basis of insufficiency of the evidence." (*Ibid.*)

C. Legal Standard

"A motion for judgment notwithstanding the verdict may be granted only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support." (*Sweatman v. Department of Veterans Affairs* (2001) 25 Cal.4th 62, 68.) "The court may not weigh evidence, draw inferences contrary to the verdict, or assess the credibility of witnesses. The court must deny the motion if there is any substantial evidence to support the verdict." (*Palm Medical Group, Inc. v. State Comp. Ins. Fund* (2008) 161 Cal.App.4th 206, 218, quoting *Begnal v. Canfield & Associates, Inc.* (2000) 78 Cal.App.4th 66, 72-73, further citations omitted.)

"'Substantial' refers to the quality, not the quantity, of the evidence." (*DeNike v. Mathew Enterprise, Inc.* (2022) 76 Cal.App.5th 371, 381 (*DeNike*), citing *Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 651 (*Roddenberry*).) "Inferences may constitute substantial evidence, but they must be the product of logic and reason. Speculation or conjecture alone is not substantial evidence." (*Roddenberry, supra*, at p. 651.) "The testimony of a single witness may constitute substantial evidence as long as it is not physically impossible or inherently improbable." (*DeNike, supra*, at p. 382.)

In ruling on a JNOV motion the court does not weigh the evidence nor determine the credibility of the witnesses. Rather, if "there is any substantial evidence, or reasonable inferences to be drawn therefrom, in support of the verdict, the motion should be denied." (*Hansen v. Sunnyside Products, Inc.* (1997) 55 Cal.App.4th 1497, 1510, cleaned up, quoting *Clemmer v. Hartford Insurance Co.* (1978) 22 Cal.3d 865, 877-878, overruled on other grounds.) "A court must make this assessment without weighing competing evidence." (*Reynolds v. Lau* (2019) 39

Cal.App.5th 953, 957.) “Indeed, we must ‘disregard[] conflicting evidence on behalf of the defendants and giv[e] to plaintiff’s evidence all the value to which it is legally entitled, therein indulging in every legitimate inference which may be drawn from that evidence.’” (*Ibid.*, quoting *Reynolds v. Willson* (1958) 51 Cal.2d 94, 99.)

With respect to motions for a new trial, Code of Civil Procedure, section 657, subdivision (7) provides that the “verdict may be vacated . . . , and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party: * * * Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.”

“When a new trial is granted, on all or part of the issues, the court shall specify the ground or grounds upon which it is granted and the court’s reason or reasons for granting the new trial upon each ground stated.” (Code Civ. Proc., § 657.) And, pertinently, a “new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, . . . , unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision.” (*Ibid.*)

D. Discussion

1. *Morris Has Not Demonstrated that a Partial JNOV is Warranted as to Either Defendant*

Morris contends that substantial evidence exists to demonstrate Bernice Basco and Ismael Basco are liable for battery. In support of his arguments, Morris cites the following portions of the rough daily transcript. (See Declaration of Kenneth C. Brooks [Brooks Decl.] exh 1.)

Partial JNOV Motion – Bernice Basco, at p. 2.

FACT 1 – Bernice Basco admits intentionally spraying Robert Morris with pepper spray. See Daily Transcript (DT) July 10, 2026, Page 197, lines 7-12; DT July 13, 2026, page 89, lines 2-7; page 97, lines 17-20.

FACT 2 – Robert Morris made clear that there was no consent to his being peppered sprayed. (DT) July 9, 2026, Page 155, lines 11-14; Page 156, lines 11-18; DT July 13, 2026, page 89, lines 2-7; page 97, lines 17-20.

Partial JNOV Motion – Ismael Basco, at pp. 2-3.

FACT 1 – Ismael Basco admits intentionally pushed Robert Morris with pepper spray [*sic*], see Daily Transcript (DT) July 10, 2026, Page 80, lines 14-19, and may have contact Robert Morris’ head. [*sic*] DT July 10, 2026, Page 131, lines 1-7.

FACT 2 – Robert Morris made clear that there was no consent to his being peppered sprayed. (DT) July 9, 2026, Page 155, lines 11-25; Page 156, lines 11-18; DT July 10, 2026, page 35, lines 1-20; DT July 13, 2026, page 89, lines 2-7; page 97, lines 17-20.

On July 9, 2026 (Brooks Decl., exh. 1, at pp. 116, et seq.), Daily Tr., at page 155:11-25, Morris testified:

And I looked up and I saw her stream -- a clear stream of pepper spray hit me and then instantly I was -- my face was on fire and -- and I was just burning like somebody had taken a blowtorch to my face.”

At page 156:11-18, Morris testified:

“Q. Who do you believe was striking your head?

A. Mr. Basco.

Q. Okay. And why do you believe that?

A. Because the punches were kind of come from his direction. And Mrs. Basco was standing a little further from him with the pepper spray. And I don’t believe the dog was doing it.

On July 10, 2026 (Daily Tr., at p. 89:2-7), Bernice Basco testified:

Mr. Morris actually pepper sprayed you in your face?

A. Yes, he did, in my eye, directly in my eye.

Q. And how long was Mr. Morris pepper spraying you in the eye, if you know?

A. I don’t know. I wasn’t counting the time.

Q. Was it more than two seconds?

A. I don’t know.

Q. What motion was Mr. Morris making with his arm as he was dispensing the pepper spray?

A. I can’t answer that. He was behind me and he’s pepper spraying me. How can I see?

Q. So during the one fluid motion that you testified to before, did you observe Mr. Morris deploying his pepper spray?

A. To whom?

Q. Just in general

A. Just to my husband.

Q. Okay. And how was his arm moving when you observed the pepper spray being deployed on your husband?

On July 13, 2026 (Brooks Decl., exh. 1, at pp. 495, et seq.), Daily Tr., at p. 89:2-7, Bernice Basco testified as follows:

Q. What did you do after you saw Dexter get struck?

A. Like I stated earlier, I got panicked. I got worried. And all I wanted to do was to protect Dexter, and that's why I pepper sprayed Mr. Morris, just to stop the attack.

On July 13, 2026 (Daily Tr., at p. 97:17-20), Bernice Basco further testified as follows:

Q. When you pepper sprayed in the direction of Mr. Morris, what was your intention?

A. Just to stop him from hitting Dexter again, just to stop the whole incident.

Two of the references are irrelevant. One reference to the July 10, 2026 transcript (Brooks Decl., exh. 1, at pp. 348, et seq., Daily Tr. at p. 80:14-19) relates to a 911 phone call Bernice Basco made on July 20, 2021—months before the incident. Page 131 of that transcript is a note from the court reporter regarding the expected differences between the rough and certified transcripts.

None of the referenced testimony supports plaintiff's contention that either defendant admitted to committing a battery on plaintiff. Rather Bernice Basco's testimony demonstrates that she pepper-sprayed Robert Morris to protect her dog, Dexter, and that Morris sprayed her. Ismael Basco testified that he acted to protect his wife.

Morris argues that the evidence demonstrates intentional rather than inadvertent or unintentional conduct, and that this supports his battery claim. He further contends that defendants' argument that their conduct was protective of one another and Dexter, is consistent with his position. Plaintiff disregards that the assertedly protective nature of defendants' conduct supports their affirmative defense of self-defense or defense of another. Having heard all of the evidence, the jury found that, notwithstanding that defendants intentionally touched plaintiff, their actions did not constitute a battery, but amounted to negligence. Plaintiff is essentially attempting to reargue the case he placed before the jury.

Based on its review of the evidence in the case, the court finds that substantial evidence supports the jury's verdict. Accordingly, the motions for partial JNOV are **DENIED**.

2. Morris Has Not Shown that There is any Basis for Granting a New Trial

Morris contends that, if the partial JNOV motions are granted, then the court must grant the new trial to address issues damages, punitive damages, and defendants' affirmative defense of self-defense. As noted above, the court is not granting those motions.

Morris has not identified any evidence that he contends does not support or undermines the verdict when considered in light of the entire record. Rather, having reviewed the record, and the parties' submissions, the court does not find that the "jury clearly should have reached a different verdict." The court therefore denies the motion for a partial new trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 3

22-CIV-03785 ROBERT MORRIS VS. ISMAEL BASCO, ET AL

**ROBERT MORRIS
ISMAEL BASCO**

**KENNETH C BROOKS
NICHOLE C BAER**

**Plaintiff's Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and
Against and Ismael Basco Pursuant to Civil Code 629**

TENTATIVE RULING:

See Line 2.

2:00 PM LINE 4

22-CIV-03785 ROBERT MORRIS VS. ISMAEL BASCO, ET AL

**ROBERT MORRIS
ISMAEL BASCO**

**KENNETH C BROOKS
NICHOLE C BAER**

**Plaintiff's Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and
Against Bernice Basco Pursuant to Civil Code 629**

TENTATIVE RULING:

See Line 2.

2:00 PM LINE 5

23-CIV-04242

ZABALLA SQUARE INVESTMENTS L.P. VS. JOHN SHEPUTIS, ET AL

ZABALLA SQUARE INVESTMENTS L.P.
JOHN SHEPUTIS

ROBERT R CROSS
ADRIAN J. SAWYER

Plaintiff's Motion to Bifurcate

TENTATIVE RULING:

The Motion was not filed and is **MOOT**.

2:00 PM LINE 6

24-CIV-01210

CHRIS TAGUNICAR VS. SAM BHAS, ET AL

CHRIS TAGUNICAR
SAM BHAS

PRO SE
NOELLE D GONZALEZ

Plaintiff's Motion to Withdraw and/or Amend Deemed Admissions as to Defendant Amisha Patel

TENTATIVE RULING:

Plaintiff Chris Tagunicar's Motion to Withdraw and/or Amend Deemed Admissions as to defendant Amisha Patel is **DENIED**.

On September 12, 2025, Patel served plaintiff with discovery, including Requests for Admissions (RFAs). (Crane Decl., ¶ 4.) Plaintiff's responses were due by no later than October 17, 2025. (*Ibid.*) Plaintiff failed to serve any responses and did not request an extension of time to respond. (*Id.*, ¶ 5.) Patel's counsel sent emails to plaintiff on October 14, 2025 and October 22, 2025 requesting the status of the discovery responses, and plaintiff did not respond. (*Id.*, ¶ 6.) On October 24, 2025, Patel filed a Motion to Deem the RFAs Admitted. Plaintiff did not oppose the Motion and did not appear at the hearing on the Motion. (*Id.*, ¶ 9.) On February 18, 2026, the court granted the Motion and deemed the RFAs admitted against plaintiff. (*Ibid.*)

On April 2, 2026, plaintiff filed this Motion seeking relief from having the RFAs deemed admitted against him. Plaintiff seeks relief under Code of Civil Procedure, sections 473, subdivision (b) and 2033.300.

Under section 473, subdivision (b), "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Under section 2033.300, "[t]he court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (*Id.*, § 2033.300, subd. (b).) The relief allowed under section 2033.300(b) applies to admissions that were deemed admitted against a party. (See *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979-982 [finding relief under former section 2033, subdivision (m), now section 2033.300, also applied to admissions that were deemed admitted against a party].) The burden rests on the nonresponding party to establish mistake, inadvertence or excusable neglect and no substantial prejudice to the propounding party. (*Id.*, at p. 982.)

The difference between section 2033.300, subdivision (b) and section 473, subdivision (b) is that section 2033.300, subdivision (b) requires not only a showing of "mistake, inadvertence, or excusable neglect," but also a showing that "the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (*New*

Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1420.) In contrast, “the absence of substantial prejudice is an important factor to consider rather than a requirement” under Code of Civil Procedure, section 473, subdivision (b). (*Ibid.*) A trial court’s discretion in ruling on a motion to withdraw or amend an admission is not unlimited, but must be exercised in conformity with the spirit of the law and in a manner that serves the interests of justice. (*Ibid.*) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief.” (*Ibid.*) Thus, the court’s discretion to deny a motion is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits. (*Id.*, at pp. 1420-1421.)

Plaintiff claims that he experienced a medical emergency that prevented him from responding to the RFAs and opposing the Motion to Deem the RFAs Admitted, and that he served responses to the RFAs once he was able to act. However, plaintiff failed to provide any competent evidence in support of his Motion to show such a medical emergency existed at the time his responses and opposition were due.

After Patel pointed out this lack of evidence in opposition, plaintiff attempted to submit evidence with his reply. The general rule of motion practice is that the court will not consider new evidence raised for the first time in reply because of the unfairness to the opponent of not being able to address it. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-228.) As such, the court has not considered plaintiff’s evidence presented for the first time in reply.

However, even if the court were to consider the evidence, it does not demonstrate that plaintiff had a medical emergency when the responses were due or at the time of the hearing on the motion to deem the RFAs admitted. Plaintiff provided a screenshot that appears to be titled “Emergency Department Jan. 19, 2026” and also appears to indicate that there were notes by doctors entered on January 19, 2026 and January 23, 2026. (Plaintiff’s exh. A.) Plaintiff does not provide copies of those notes, and only shows that they appear to have been entered on those dates. Plaintiff also provides a message from Dr. Amara on January 20, 2026 indicating that plaintiff complained of severe back pain and recommends taking medication and continuing gentle movement as tolerated and using ice or heat for comfort. (*Ibid.*) Nothing in these documents shows that plaintiff suffered a medical emergency when the discovery responses were due in October 2025, nor has he supplied evidence demonstrating that he was suffering from a medical emergency from January 19, 2026 through February 18, 2026, when the court deemed the RFAs Admitted.

The Motion is therefore **DENIED** because plaintiff fails to establish mistake, inadvertence, or excusable neglect to support the requested relief.

The court notes that Patel filed opposition papers on April 23, 2026 and then proceeded to file a second set of opposition papers on September 10, 2026. The second opposition does not state that it is an amended opposition. Nevertheless, the court finds that the second opposition

supersedes the original opposition filed on April 23, 2026 and has only considered the second set of opposition papers filed on September 10, 2026.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Patel's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court

2:00 PM LINE 7

25-CIV-06717

HUI JI VS. VOLVO CAR USA LLC

HUI JI
VOLVO CAR USA LLC

CHELSEA HOLLINS
FREEMAN D CULLOM

Plaintiff's Motion for Payment of Attorneys' Fees and Reimbursement of Costs and Expenses

TENTATIVE RULING:

For the reasons stated below, plaintiff Hui Ji's "Motion for Attorney's Fees, Costs, and Expenses," filed on September 3, 2025, is **GRANTED-in-part** and **DENIED-in-part**. The court awards to plaintiff, as the prevailing party, the following:

- \$11,745 total awarded attorney's fees; +
- \$668.30 total awarded costs/expenses
- (no multiplier)
- \$12,413.30 (total award)

Plaintiff's request for relief under Code of Civil Procedure, section 473, subdivision (b), filed on September 16, 2026, is **GRANTED**. Plaintiff states that attorney Nadia Alam's declaration was inadvertently not filed with plaintiff's moving papers. The court grants the request and has considered the Alam declaration. Where evidence is belatedly filed, the court sometimes continues the hearing or grants the opposing party an opportunity to respond. Here, however, the court finds that the Alam declaration does not change the court's decision regarding the motion, and therefore, finds it unnecessary to continue the hearing or otherwise delay a ruling on the motion.

A. Background

This case was filed under Song-Beverly Consumer Warranty Act, which permits a prevailing consumer to recover their reasonable attorney's fees, costs and expenses. (Civ. Code § 1794, subd. (d).) Plaintiff filed the case on September 3, 2025. Defendant Volvo Car USA, LLC filed its Answer in October 2025. On January 31, 2026, fewer than five months into the case, the parties signed a Settlement Agreement. Plaintiff, as the prevailing party, now seeks a total award of \$23,308.10 for attorney's fees and costs. Defendant does not dispute that plaintiff is the "prevailing party" for purposes of recovering fees but challenges the amount requested.

By any objective measure, very little happened in this litigation. In the few months that the case was pending, plaintiff served some standard initial discovery requests, but the case settled before defendant responded. No depositions took place. No motion practice occurred.

No case management conferences or other hearings were held. Essentially, plaintiff filed the case, and shortly thereafter, settlement discussions began and a settlement was reached. By plaintiff's calculation, by the end of February 2026 (a month after the case settled), plaintiff's counsel had billed a total of 16.8 hours on the case. With this fee motion, plaintiff seeks credit for about 30 hours of attorney time.

B. Discussion

Courts generally employ the "lodestar" method in determining fee awards in cases involving consumer protection statutes. (*Press v. Lucky Stores* (1983) 34 Cal.3d 311, 322; *Robertson v. Fleetwood Travel Trailers of California* (2006) 144 Cal.App.4th 785, 818-819 [lodestar applicable to fee awards under the Song-Beverly Act].) Defendant does not argue otherwise. The lodestar method of calculating fees entails three steps: (1) determining the number of hours reasonably spent; (2) determining the reasonable hourly rate; and (3) consider whether a multiplier is warranted. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)

Having reviewed the submissions, the court will reduce the claimed \$3,900 "flat rate" for pre-litigation activities down to \$1,950. Plaintiff seeks \$3,900 as a:

Flat rate for all services rendered prior to the preparation of the Complaint in this matter, including all communications with client, including, but not limited to, case facts, merits of case, applicability of Song-Beverly to case facts, client's contacts to defendant, attorney-client fee agreement, contingency fee arrangement, and pertinent evidentiary documentation; attorney review of client's repair orders, purchase contract, current registration, vehicle payment information, and incidental damages; the preparation of Attorney-Client fee agreement; computation of client's actual damages, and all written and verbal communications with defendant's representative(s) outside the context of litigation.

(Mot., exh. A [time entries].)

A fee motion serves to award plaintiff for all attorney's fees reasonably and actually incurred. A "flat rate" provides no indication of how much attorney time was actually spent. And by grouping together of a large number of tasks into one category, the time entry prevents the court from determining how much attorney time was spent on each individual task, and from assessing whether the amount of time spent on each task was reasonable.

Total reduction in fees: \$1,950.

Attorney Chelsea Hollins's September 3, 2025 time entry for \$2,970 was erroneously billed at a hourly rate of \$900/hr. Plaintiff's Reply brief concedes this mistake. Hollins's hourly rate is \$545, but this 3.3 hour entry was "billed" at \$900/hr. The court will apply a \$545/hr. rate. Thus, the \$2,970 figure will be reduced to \$1,798.50 (3.3 hrs. x \$545/hr. = \$1,798.50.)

Total reduction in fees: \$1,171.50.

Attorney Nadia Alam's \$450/hr. rate is high. Ms. Alam has practiced law for less than two years. Her \$450/hr. rate appears excessive for the work she is performing. Rather than reducing her hourly rate and parsing through each of attorney Alam's time entries and applying that lower rate, the court will reduce the total award by \$1,000, which will effectively reduce attorney Alam's hourly rate somewhat.

Total reduction in fees: \$1,000.

The court will strike 3 hours of time spent on the fee Motion. Plaintiff's spreadsheet identifies the following time spent on this fee motion:

- 3-13-26 .5 hrs. (at \$450/hr.) \$225 (attorney Alam)
- 3-16-26 2.5 hrs. (at \$450/hr.) \$1,125 (attorney Alam)
- 3-18-26 1.3 hrs. (at \$450/hr.) \$585 (attorney Alam)
- 3-18-26 1.1 hrs. (at \$625/hr.) \$687.50 (attorney Fhima)

Spending over five hours on this fee motion appears excessive, particularly given the evidence indicating that the motion was largely cut and paste from a template. (See Sept. 11, 2026 Tolmasoff Decl., ¶¶ 10-11, exh. F [showing that the fee motion is virtually word-for-word identical to a motion that Neale & Fhima filed over four years ago in an unrelated matter].) Accordingly, the court will strike the following two time entries for work on the fee motion:

- 3-13-26 .5 hrs. (at \$450/hr.) \$225
- 3-16-26 2.5 hrs. (at \$450/hr.) \$1,125

Total reduction in fees: \$1,350.

The court will reduce the claimed \$2,700 for reviewing the Opposition, drafting the Reply, and attending the hearing to \$1,500, which the court finds to be a more reasonable amount of fees for these tasks.

Total reduction in fees: \$1,200.

Plaintiff will not incur \$450 to oppose a motion to tax costs, because defendant is not contesting costs. (The Motion seeks \$450 for one anticipated hour opposing a motion to tax costs, but defendant is not challenging the costs.)

Total reduction in fees: \$450.

C. Plaintiff's Fee Award Calculation

- \$18,866.50 (total loadstar fees claimed by plaintiff)
 - Minus \$1,350 (reduction of attorney Alam's time spent on the fee motion)
 - Minus \$1,200 (reduced time for reviewing the Opposition, drafting the Reply, and attending the hearing)
 - Minus \$1,950 (reduced time for pre-litigation "flat rate" billing activities)
 - Minus \$1,171.50 (reduced time for attorney Hollins's time entry on 9/3/2025, erroneously billed at \$900/hr.)
 - Minus \$450 (anticipated time spent in opposing a motion to tax costs)
 - Minus \$1,000 (adjusting attorney Alam's hourly rate slightly downward)
- \$11,745 (total awarded fees)

Given that the case is not complex, its short duration, and the fact that very little happened in this case, the court declines to apply a multiplier.

Plaintiff's fee motion is **GRANTED-in-part**, as follows:

- \$11,745 total awarded attorney's fees; +
- \$668.30 total awarded costs/expenses
- (no multiplier)
- **\$12,413.30 (total award)**

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 8

25-CIV-08222

ANGIE M. CHRISTENSEN VS. CITY OF BELMONT

ANGIE M. CHRISTENSEN
CITY OF BELMONT

PRO SE
ANA SANDERSON

Defendant's Motion to Strike Portions of Plaintiff's Complaint

TENTATIVE RULING:

See Line 9. If plaintiff appears to contest the tentative ruling, or at a continued hearing on October 21, 2026 at 2:00 p.m., in Department 28, the court will issue the following tentative ruling:

Defendant City of Belmont's Motion to Strike Portions of plaintiff Angie M. Christensen's Complaint is **DENIED AS MOOT**.

2:00 PM LINE 9

25-CIV-08222

ANGIE M. CHRISTENSEN VS. CITY OF BELMONT

ANGIE M. CHRISTENSEN
CITY OF BELMONT

PRO SE
ANA SANDERSON

Defendant's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

As a preliminary matter, there is no indication that defendant City of Belmont gave proper notice of the hearing date or location to plaintiff Angie M. Christensen. (See Cal. Rules of Court, rules 3.1110(b)(1).) The notice states that the hearing will take place in Department 19 on September 21, 2026. This was changed by the clerk's office upon filing to Department 28 and September 23, 2026. No proof of service of the amended hearing date and location has been filed. Accordingly, there is no indication that plaintiff Angie M. Christensen has received proper notice of the hearing, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.)

Counsel for defendant City of Belmont is ordered to appear in Department 28 (in person or by Zoom) on September 23, 2026 at 2:00 p.m. to advise the court whether notice of the changed hearing date and location was served on plaintiff.

Unless defendant demonstrates that notice of the correct date and location of the hearing was served, or plaintiff appears to contest the tentative ruling, defendant's Demurrer to plaintiff's Complaint is **CONTINUED** to October 21, 2026 at 2:00 p.m. in Department 28, 9800 No. Humboldt St., Courtroom I, San Mateo, California 94401. **IF THE HEARING IS CONTINUED, DEFENDANT'S COUNSEL IS ORDERED TO GIVE NOTICE TO PLAINTIFF OF THE NEW HEARING DATE, AND TO FILE PROOF OF SERVICE OF SUCH NOTICE.**

Defendant's request for judicial notice (RJN) is **GRANTED**.

* * *

Notwithstanding that this hearing may be continued and that plaintiff has not filed an opposition, given that it appears that plaintiff failed to timely present a government claim, the court will issue the following tentative ruling.

"Public entities are protected by sovereign immunity for injuries arising from their acts or omissions, except as provided in the [Government Claims] Act or other statutes." (*Lowry v. Port San Luis Harbor Dist.* (2020) 56 Cal.App.5th 211, 218; see Gov. Code, § 815.) All claims for money or damages against local public entities must be presented in compliance with the

Government Claims Act. (Gov. Code, § 905.) If a claim is not timely presented, any lawsuit for the money or damages is barred. (*Id.*, § 945.4.)

“[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement. Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action.” (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.)

It is indisputable that the City is a local public entity, such that Christensen’s claims are subject to the claims-presentation requirement of the Government Claims Act. (See Gov. Code, § 900.4.) Exhibit A to defendant’s RJN is a copy of plaintiff’s government claim, which was apparently signed on December 20, 2024, but states that her alleged injuries occurred on October 31, 2023.

The Complaint does not allege compliance with or excuse from the requirement to timely submit a government claim (see Oct. 30, 2026 Complaint, § 9), and thus it fails to state facts sufficient to constitute a cause of action. Accordingly, the demurrer is **SUSTAINED without leave to amend**.

Christensen has not requested leave to amend the Complaint to cure the defect. Thus, the court is under no obligation to grant leave to amend. (*Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 Cal.App.4th 1403, 1423.) Furthermore, in light of the allegations of the Complaint and the materials of which the City requests the court take judicial notice, amendment to be futile. (See *Save Lafayette Trees v. City of Lafayette* (2019) 32 Cal.App.5th 148, 154.) It appears Christensen presented a claim for the incident and her injuries, more than a year after the incident. (Dec. 30, 2025 Request for Judicial Notice, exh. A.) This is outside both the six-month window provided for presenting a claim and the one-year window to apply to present a late claim. (See Gov. Code, § 911.2, subd. (a), § 911.4, subd. (b).)

Although leave to amend is liberally allowed, such leave should not be granted where, in all probability, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes Corp. v. GL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

If Christensen seeks leave to amend, she should properly contest the tentative ruling and appear at the hearing (in person or via Zoom) to state facts that provide a reasonable possibility that she can state a cause of action.

2:00 PM LINE 10

25-CLJ-02523

CAPITAL ONE, N.A. VS. OSWALDO SABAN

CAPITAL ONE, N.A.
OSWALDO SABAN

JANET L. BROWN
JENNIFER TUNDER

Plaintiff's Motion for Summary Judgment or in the Alternative Summary Adjudication

TENTATIVE RULING:

Plaintiff's unopposed motion for summary judgment is **GRANTED**.

Plaintiff has met its moving burden under Code of Civil Procedure, section 437c, subdivision (p)(1) to show that there is no defense to the action. See Undisputed Material Facts 1-8 and the declaration of Maria Conley.

Judgment shall be entered for plaintiff in the amount of \$8,380.38. The evidence submitted by plaintiff, as referenced in its separate statement, demonstrates that there are no triable issues of material fact, and that defendant breached his agreement to pay the amount due under the Cardmember Agreement with Discover Bank, to which plaintiff Capitol One, N.A., is the successor by merger. Plaintiff's evidence shows that defendant owed \$8,380.74 on the credit card account ending in 9734 as of July 20, 2022, which amount has not been paid despite a demand. (See Conley Decl., ¶¶ 1, 6, 7, 11; exhs. A & B, at p. 11.)

Plaintiff is to prepare the proposed judgment. Plaintiff's memorandum of costs is premature. If defendant does not timely file a motion to tax or strike, the court will amend the judgment to include costs as permitted by the Code of Civil Procedure, section 1033.5.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 11

25-CLJ-05253

U.S. BANK NATIONAL ASSOCIATION VS. OLGA C ENRIQUEZ

U.S. BANK NATIONAL ASSOCIATION
OLGA C ENRIQUEZ

STELLA PARK
ANDREW J. GRAMAJO

Plaintiff's Motion for Summary Judgment or in the Alternative Summary Adjudication

TENTATIVE RULING:

In this debt collection case, on March 27, 2026, plaintiff U.S. Bank National Association moved for summary judgment against defendant Olga C. Enriquez. Plaintiff served defendant's counsel by mail. However, that method of service is improper where defendant is represented by counsel. Plaintiff was and is required to serve all papers electronically. (See Cal. Rules of Court, rule 2.251(c)(3); Super. Ct. San Mateo County Local Rules, rule 2.1.7(a)(7).)

Even were service by mail permitted, there is no indication that the envelope was properly addressed to include Cordoba Legal Group, which is part of the address of record for defendant's counsel. (See Answer, p. 1.)

Defendant's counsel of record, Andrew J. Gramajo, filed a motion to be relieved as counsel on June 17, 2026, which is scheduled for hearing January 27, 2027. (See Motion to be Relieved as Counsel, filed June 17, 2026.) Mr. Gramajo's supporting declaration for the motion to be relieved as counsel states that he left Cordoba Legal Group approximately one year ago, that the client relationship was expressly between defendant and Cordoba Legal Group, and that he does not have access to Cordoba's files/systems/email. Mr. Gramajo states that he is unable to communicate with defendant and that his name remains as the counsel of record because of Cordoba's administrative failure to file a substitution of attorney. (See Declaration, filed June 17, 2026, ¶ 2.)

"Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as is the case here. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364.)

Therefore, there is no indication notice of the motion was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is **DENIED without prejudice** to a renewed motion supported by valid proof of proper service.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's

signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 12

26-UDL-00421

CHIU PROPERTIES, LLC VS. EDDY ADEMAR AREVALO, ET AL

CHIU PROPERTIES, LLC
EDDY ADEMAR AREVALO

STEVEN T. NAUMCHIK
PRO SE

Defendant Eddy Arevalo's Motion for Summary Judgment, or in the Alternative, Summary Adjudication

TENTATIVE RULING:

Defendant's Motion for Summary Judgment, or in the Alternative Summary Adjudication is **DENIED**.

Defendant's Request for Judicial Notice is **GRANTED** pursuant to Evidence Code, section 452, subdivision (d).

In an action to obtain possession of real property, a motion for summary judgment may be made at any time after the answer is filed upon giving five days notice, and shall be granted or denied on the same basis as a motion under Section 437c. (Code Civ. Proc., § 1170.7.)

Code of Civil Procedure, section 437c, subdivision (b)(1) provides that a motion for summary judgment "shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Under *Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, the party moving for summary judgment has the burden of production to make a *prima facie* showing that there is no triable issue of any material fact. The burden then shifts to the nonmoving party to make a *prima facie* showing that there is a triable issue of material fact.

Here, plaintiff served a three-day notice to perform covenants or quit on March 16, 2026. (Complaint, ¶ VI.) That notice recites that "[o]n March 6, 2026, management served a 3-day notice to perform or quit" requiring removal of an unauthorized occupant, and that Defendant Arevalo "failed to comply." (RJN, exh. 1, at p. 6.) The Complaint does not allege a separate notice to quit served after completion of any notice period. (UMF No. 12; See Complaint, generally, at RJN, exh. 1.)

Service of the requisite three-day notice is an element of an unlawful detainer cause of action that must be alleged and proven. (*Borsuk v. App. Div. of Superior Ct.* (2015) 242 Cal.App.4th 607.) For a covenant breach under Section 1161(3), the elements are failure to perform a lease covenant, service of a three-day notice to perform or surrender, refusal to perform, and continued possession after the period expires. (*Yanez v. Vasquez* (2021) 65 Cal.App.5th Supp. 1.) A landlord who does not strictly comply with the notice requirements cannot prevail. (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433; *Gonzalez v. Bolanos* (2025) 116 Cal.App.5th Supp. 12.) If defendant establishes that plaintiff's notice was legally void,

plaintiff cannot prove this element and the claim fails, as do the claims for restitution and damages.

After twelve months' continuous and lawful occupancy, an owner "shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civ. Code, § 1946.2.) Defendant alleges that he has been in continuous occupancy of the premises for more than twelve months. (Arevalo Decl., ¶¶ 3-5.) He therefore contends that his tenancy meets this requirement, and that just cause is required for the termination of his tenancy, given the lease's election of disclosure that the tenancy is subject to those requirements. (UMF Nos. 2, 8; RJN, exh. 1.)

However, the Declaration of Jane Hagen, plaintiff's authorized agent, in opposition to the motion, raises a factual question about whether defendant has continuously occupied the premises. Exhibits 1 and 2 to her declaration, an email from defendant, and a copy of a criminal protective order – domestic violence, issued on January 1, 2026, respectively, indicate that defendant has not been living at the apartment and indeed is prohibited from coming within 100 yards of it, because his former partner, the protected party who is the allegedly unauthorized occupant, is living there. (See Hagen Decl., ¶¶ 4-7.)

Although defendant complains that plaintiff did not submit a separate statement in response to defendant's separate statement, these are not required to support summary judgment or adjudication motions in unlawful detainer proceedings. (See Cal. Rules of Court, rules 3.1350(c)(2), 3.1351.) "The procedures governing a motion for summary judgment in an unlawful detainer action are streamlined (e.g., separate statements are not required under § 437c, subd. (s) of the Code Civ. Proc.), but such a motion 'shall be granted or denied on the same basis as a motion under [Code of Civil Procedure s]ection 437c' (Code Civ. Proc., § 1170.7)." *Borden v. Stiles* (2023) 92 Cal.App.5th 337, 344-345, citing Cal. Rules of Court, rule 3.1351.) Accordingly, plaintiff has raised an issue of fact regarding whether defendant had continuously resided at the property for at least twelve months when the complaint was filed.

Defendant's motion and his reply primarily rely on the language of Civil Code, section 1946.2, subdivision (c), which states that "[b]efore an owner . . . issues a notice to terminate a tenancy for just cause that is a curable lease violation, the owner shall first give notice of the violation to the tenant with an opportunity to cure the violation pursuant to paragraph (3) of Section 1161 . . . If the violation is not cured within the time period set forth in the notice, a three-day notice to quit without an opportunity to cure may thereafter be served to terminate the tenancy." (Civ. Code, § 1946.2.) Failure to comply with "any provision of this section shall render the written termination notice void." (*Id.*, § 1946.2 subd. (g); *De Paolo v. Rosales* (2025) 118 Cal.App.5th Supp. 1.) Defendant reads the statute as requiring the second notice to be a three-day notice to quit without an opportunity to cure in order to satisfy the code section's requirements. However, this reading ignores the permissive "may" language of the statute and is not supported by authority holding that the additional process provided by the opportunity to cure in a second notice voids the effectiveness of the notice.

Defendant therefore has not shown that plaintiff cannot establish the notice element and that he is entitled to judgment as a matter of law. Defendant's alternative request for summary adjudication rests on the same argument.

The Motion for Summary Judgment and Alternative Motion for Summary Adjudication are accordingly **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM